AnimalhealthEurope welcomes the opportunity to provide feedback to the public consultations on the Welfare and traceability of dogs and cats (new rules) (europa.eu) and on Animal welfare – protection of animals during transport (europa.eu). AnimalhealthEurope is the association representing manufacturers of animal medicines, vaccines and suppliers of other animal health products in Europe. The health and the welfare of animals are intrinsically linked and for this reason animal welfare is a priority for AnimalhealthEurope's members. We would therefore like to further develop our feedback below.

General

AnimalhealthEurope:

- welcomes the recognition of the 'One Health approach', of the five domains, and the integration of a full article on animal health in the Proposal on dogs and cats
- suggests to use a more positive language in the recitals of the Proposal on dogs and cats

AnimalhealthEurope welcomes the clear recognition of the importance of the health of an animal for its general level of welfare. Elements concerning the health of cats and dogs can be found in different provisions of the Proposal. We applaud in particular the integration of an entire article 13 and paragraph 3 in Annex I on the health of cats and dogs bred or kept in establishments or placed on the Union market. The health-welfare interlinkage however could have been further emphasised in the different parts of the Proposal, in particular in the recitals.

The One Health approach recognises the link between human, animal health and the environment. As animal health and welfare are interdependent, it is very logical that the Proposal on dogs and cats recognises the One Health approach in its recital (8). While we welcome this inclusion, we also regret that the recital seems to only recognise One Health in the context of the identification and registration of cats and dogs for the purpose of controlling the transmission of animal diseases to people, and does not recognise any positive contribution that such measures would bring in the form of healthy cats and dogs providing companionship or assistance through the human-animal bond as well as avoiding spreading pathogens agents common to wildlife in the environment.

Animal welfare science developed over the last years and the so-called five domains are now more widely accepted than the former five freedoms, as they not only aim to avoid negative experiences for the animal, but they recognise that animals should also experience positive feelings and that negative experiences should be kept as mild and as few as possible. AnimalhealthEurope welcomes the addition of the five domains as a modernisation of the general setting for the Proposal.

Whilst we understand the intention in the recitals of the Proposal on dogs and cats focuses on addressing the many challenges for animal welfare, stray populations, and public health, etc., we would have appreciated a mention of the positive contributions of dogs and cats on human health and society. Influenced by behaviours linked to health and well-being, the human- animal bond creates favourable emotional, psychological, and physical interactions between people and animals, positively shaping societies and communities. There is even some evidence that it can have positive economic impacts on healthcare systems. This deserves a mention supporting why this Proposal is important.

Animals used for scientific purposes

AnimalhealthEurope:

- demands that Article 14(3)(a) is added to the list of Articles listed in Article 2(4) of the Proposal on transport and,
- that DG SANTE and the EMA review and confirm that the provision on the Proposal on transport prescribing that "the animals to be transported are accommodated at the place of departure for at least 1 week prior to departure" will not affect the availability of animals involved in marketing authorisation under Reg. 2019/6 and for scientific purposes
- demands that DG SANTE and the EMA review and confirm that the provisions in both proposals, including the above mentioned "1 week rule", will not affect the mandatory veterinary clinical trials required to put veterinary medicines on the market under Reg. 2019/6

The Directive on the protection of animals used for scientific or educational purposes (Directive 2010/63) was adopted in 2010. This Directive could therefore not be mentioned in relevant legislation for the welfare of cats and dogs (such as Directive 98/58) or on the protection of animals during transport (Regulation 1/2005). AnimalhealthEurope therefore welcomes the clarification offered thanks to the reference made to Directive 2010/63, in both Proposals on cats and dogs (Article 2.2 in connection with recital 13) and on transport (Article 2.4 in connection with recital 17).

AnimalhealthEurope would however like to bring to the attention of the Commission that Article 1.5 of Directive 2010/63 excludes "veterinary clinical trials required for the marketing authorisation of a veterinary medicinal product" from the scope of the Directive.

Veterinary clinical trials come very late in the process of authorisation of a veterinary medicinal product and are required under Regulation 2019/6 on veterinary medicines. During this phase, a medicine which was developed to prevent or cure the disease for a given animal species must be tested on animals of this same species. As they come late in the approval process, veterinary clinical tests are generally safe for the tested animals. They are nonetheless a necessary part of the approval process and aim at avoiding species-specific risks that cannot be detected by other methods such as Non-Animal Methods (NAMs).

The definition of the veterinary clinical trials written in the Regulation 2019/6 may be subject to different interpretations due to the huge diversity of cases (e.g. research trials in the field or in an experimental station, premarketing authorisation and post marketing trials, etc).

In order to avoid any unpredictable and unintended conflicting requirements that could result from dual legislation and could impact the future availability of veterinary medicines, AnimalhealthEurope calls on DG SANTE, in collaboration with the EMA to review and confirm that the provisions in both proposals will not affect the mandatory veterinary clinical trials required to put veterinary medicines on the market.

Similarly, Article 14(3)(a) of the Proposal on the protection of animals during transport foresees that "*the animals to be transported are accommodated at the place of departure for at least 1 week prior to departure*". This Article is not listed in Article 2(4) and should therefore apply to animals involved in scientific purposes or in veterinary clinical trials. Given the variety of animals transported for clinical trials and for scientific purposes, AnimalhealthEurope believes that it can be detrimental to assume that all animals from all species involved in clinical trials and for scientific purposes can be stay at least 1 week to the place of departure. We would welcome clarification from the Commission and the European Medicines Agency on the above and possibly suggest to add Article 14(3)(a) to the list of Articles listed in Article 2(4).

Definitions

AnimalhealthEurope:

- suggests to lower the maximum threshold for shelters and breeding establishments to derogate to the core of the Proposal on cats and dogs (or alternatively to reduce the number requirements smaller establishments can derogate to). Pet shops shall not be allowed to derogate to such requirements
- suggests that shelters should not be allowed to perform breeding activities
- calls on the Commission to ensure coherence between the wording of the 2 proposals and to replace the term "cage" with "container" in the Proposal on dogs and cats

A maximum threshold for breeding establishments to derogate to the core of the Proposal on cats and dogs is defined in Article 4, in link with recital 15. It allows the "establishments keeping up to three bitches or queens and producing in total two litters or less per establishment and calendar year" to not comply with the provisions relating to the five domains of animal welfare of the Proposal. Similarly, "pet shops keeping at any given time three dogs or less or six cats or less" and "shelters keeping at any given time ten dogs or less or twenty cats or less" are also excluded from most of the obligations concerning the welfare of cats and dogs. As a consequence, they are not obliged to comply with minimum welfare requirements under this legislation, such as on feeding and watering, housing, health, behavioural needs or on painful practices.

Focusing on the health aspect, proportionality might not apply in the field of cats and dogs as "small" breeding establishments represent an important share of the commercial activities in some Member States and could therefore water down the provisions of the Regulation. AnimalhealthEurope therefore recommends lowering the threshold. Some Member States indeed already have lower thresholds in their national legislation, for example keeping one bitch or queen and selling one litter a year (French ordinance 2015-1243). A similar rule should apply to pet shops. Alternatively, it could be possible to restrict the exemption to some articles of Chapter II, for example to Article 16 on the approval of breeding establishments only, rather than a blanket exemption.

AnimalhealthEurope welcomes the inclusion of shelters in the scope of the Proposal. Given their intrinsic essential activity of collecting and housing abandoned, stray or confiscated cats and dogs, shelters are particularly vulnerable to disease occurrence and spread. Hence, and although we fully understand the need and the intention to limit red tape and support these actors fulfilling a "*public interest function*", we believe that keeping up to ten dogs or up to twenty cats at the same place creates risks for the health of these animals and of their keeper. For this reason, we would recommend to also lower the threshold of Article 4 for the shelters and use funds collected under this legislation (for example through the activities linked to animal registration) to help small shelters to comply with the provisions of Chapter 2, in particular with the One Health related aspects.

Shelters also represent a significant amount of animals living in European households and are defined in Recital 18 and Article 3.14. This definition does not mention the absence of breeding/reproduction activities, which is one of the important elements which shall distinguish shelters from breeding establishments. We therefore believe that shelters should not breed animals or allow reproduction and that this should be reflected in the core of the legislation.

The Proposal seems to interchangeably use the words "*cage*" or "*container*" in different places, referring to the same objects (Article 12.3, Recitals 30 and 32). In the absence of a definition and harmonisation of this wording, the Proposal is somewhat unclear. We suggest to replace the term "cage" with "container" in order to align with the wording of the Proposal on transport.

Animal health and animal welfare

AnimalhealthEurope:
- welcomes the provisions on preventive animal health care
- calls on the Commission to extend these provisions beyond parasite control, where available, and to more species, where possible

AnimalhealthEurope welcomes the Commission decision to include an entire Article 13 on the health and welfare of cats and dogs. In particular, we applaud the provisions on biosecurity, aiming at separating a possibly sick or vulnerable animal from the others and ensuring that it receives treatment from a veterinarian as well as the provisions on preventive animal care. We however would like to highlight that parasites are only one of the sources of diseases and that other diseases (including some zoonoses) are fully preventable. Cats and dogs bred and kept in establishments or placed on the European market should be protected against these diseases. Together with the traceability provisions of this Proposal, all these preventive measures support the One Health approach in the European Union (Recital 8) and where needed, could be further detailed in Annex I, Paragraph 3.

The Proposal on the protection of animals during transport also includes elements on the health of animals during transport, mainly linked with the provisions on the fitness for transport (Annex I, Chapter I(10)). We suggest extending these provisions on "*necessary preventive veterinary treatments*" to all animals covered by this Proposal and not only to cats and dogs and to include the prevention and control of internal and external parasites, unless there is a contraindication (e.g. respecting the withdrawal period before slaughter for food production animals).

Identification and registration (traceability)

AnimalhealthEurope:
- calls on the Commission to ensure better accuracy of the data in the databases, while respecting some other requirements, such as compliance to GDPR, etc.
- believes that the databases should allow enough flexibility to access information such as vaccination and other health records, etc.

AnimalhealthEurope welcomes the Provisions on identification and registration (I&R) of cats and dogs (traceability) of the Proposal on the welfare of cats and dogs. Together with veterinary care and education, I&R constitute the core of responsible animal ownership. Over the last years, an increasing number of Member States have adopted mandatory I&R as part of their national legislation (Knowing the Law - The CARO Project - A database for companion animal responsible ownership (caro-project.org)). Although an EU-wide database would have been the most effective solution, it is time that the Commission commits to make identification and registration mandatory and that databases are interoperable and to fight against the lack of or improper I&R (Recitals 39 & 40). Non-professional owners who were supplied with a registered dog or cat and who would like to cede the ownership of the animal should be responsible for ensuring that the change of ownership is reflected in the database (Article 17). Competent Authorities should operate the changes in the databases within an acceptable time.

Starting with microchips, identification technologies have developed in an unprecedented way over the past years. The I&R databases can support the objectives of this Regulation and beyond that the One Health approach in many ways: it could provide genealogical information to fight against inbreeding (recital 27) or allow for the keeping of medical records to help improve the health of the animals and protect their keepers

from possible zoonoses (Article 13) as it is already the case in some countries. For this reason, it is important to allow for the necessary flexibility in the databases, hence allowing for future improvements. The change of ownership as well as the end of the life of a dog or a cat should be reflected in the database in the animal's file. On the other hand, more harmonisation is needed between Member States concerning information made available to the public and in particular concerning the alignment with some other requirements such as GDPR. In particular, only certified civil servants should be allowed to access some information in the database and changes to the database should only be made under veterinary supervision, by certified veterinarians.

Trainings

AnimalhealthEurope:
- welcomes the inclusion of provisions on education and training in both Proposals and recommends to include trainings on first aid, animal health and indicators to the Proposal on transport

Education and trainings are essential to prevent animal suffering. AnimalhealthEurope welcomes the inclusion of provisions on education and training in both Proposals and would like to suggest extending these provisions. The Proposal on transport should include trainings for monitoring the indicators listed in Article 26.1, in particular the signs of health and physical problems other than injuries (Article 37.2). It should also include training on first aid to make sure animals will never be left without immediate assistance when needed.

Information for future owners & online sales (cats and dogs Proposal)

AnimalhealthEurope:
- welcomes the provisions on responsible ownership of the Proposal on dogs and cats and call on the Commission to ensures that the sellers should be responsible for the authenticity of the information provided to the future owner

AnimalhealthEurope welcomes the Provisions on responsible ownership of cats and dogs and on the obligation for operators to provide information about responsible ownership, including the obligation to display a warning statement for animals advertised online (Article 8 and Recital 38). Experience however showed that buying or adopting an animal can be an impulsive decision, which can lead to abandonment or animal suffering. For this reason, many actors such as responsible shelters implemented the rule that cats and dogs cannot be purchased or adopted from the first visit, but that future owners should come back after few days to get their companion animal. Such good practices should also be part of the legislation, in particular when the animal is advertised online.

Articles 8.2 and 17.4 and .5 and Recital 41 describe the rules for the online advertising of cats and dogs. These draft provisions put on the future owner the burden to verify the identification and registration of the animal, hence allowing for possible fraud. AnimalhealthEurope believes that the sellers as well as online platforms should take responsibility for the animals that are placed on the European market. Such systems are already available, like VeriPet for example (VeriPet – the Technical Solution to Stop Illegal Puppy Traders - FOUR PAWS International - Animal Welfare Organisation (four-paws.org)).

Veterinary supervision

AnimalhealthEurope:

- believes that the presence of a veterinarian at loading and unloading is not realistic and would recommend to extend the scope of this provision of the Proposal on transport
- recommend that transport vehicles are equipped with first aid kits
- suggest to make better use of the animal welfare visit of the Proposal on dogs and cats

There is currently a shortage of veterinarians and in particular in official veterinarians in Europe. AnimalhealthEurope understands and welcomes the intention of the Proposal on transport to ensure that the loading of animals in vehicles goes well, as loading and unloading are critical for the safety of an animal transported. We however doubt that Article 17.2 is implementable and suggest to extend the list of people who can supervise the loading operations. Some other actors could for example ensure the safety of the animals, provided that they receive appropriate training from veterinarians. It's important to note that it's not only during the loading and unloading that accidents can happen. This said, transport should only take place when the vehicles are equipped with proper first aid kits.

We welcome the animal welfare visits of Article 10 of the Proposals on Dogs and Cats. We believe that they should also be used as the opportunity to control documentation certifying that the caretakers duly acquired the competences required in Article 9. The animal welfare visits should also be used by the veterinarian to check the health of the animal. Article 13 of the Proposal on cats and dogs should therefore also include individual health plans and regular health checks for the animals.